

complaint

W is unhappy that Elite Insurance Company Limited has declined its claim for damage to a flat roof at the business premises under their commercial guarantee insurance policy.

background

After checking with Elite to make sure it would be allowed W had a solar installation fitted to a flat roof. Elite confirmed the terms it would accept and W then completed the installation. A little later W claimed for roof damage and after arranging an inspection Elite declined the claim. It said the solar installation had caused the roof damage.

Our adjudicator upheld the complaint. He said that Elite hadn't provided the full details from its inspection and so he couldn't accept that Elite had proven the damage was caused by the solar installation. He said that despite being aware that W said the damage pre-dated the installation Elite hadn't responded to this point. Our adjudicator felt the evidence from W was more persuasive. He said it was unreasonable to decline the claim and it should reconsider the claim in line with the terms and conditions.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

W has produced statements from different parties each confirming that there was a problem with the flat roof prior to the solar installation taking place. In view of the different status of the parties who have given statements I've no reason to doubt them. I think more importantly W also got details from the manufacturer of the roof membrane that said the problem has been caused due to the roof boards not being adequately fixed. There's no suggestion any of the damage is linked to the solar installation.

Although I've reviewed the details and report provided by Elite I don't think it outweighs the evidence put forward by W and especially the details from the manufacturer. There isn't enough detail to accept that Elite acted reasonably when it declined to deal with the claim. I think Elite was clear that any damage caused by the solar installation would be excluded but it hasn't shown that this is what happened in relation to this claim.

I think Elite needs to reconsider the claim in line with the remaining policy terms and conditions.

my final decision

I uphold this complaint.

I require Elite Insurance Company Limited to:

- reconsider the claim in line with the remaining policy terms and conditions.

Under the rules of the Financial Ombudsman Service, I'm required to ask W to accept or reject my decision before 26 October 2016.

John Quinlan
ombudsman